

Court No. - 39

Case :- WRIT - C No. - 9691 of 2021

Petitioner :- Mohd. Ahmad

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Anas Mahboob

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Mrs. Sadhna Rani (Thakur),J.

Sri V.C. Roy, learned advocate has put in appearance on behalf of the petitioner.

Vakalatnama filed today is taken on record.

Sri Narendra Kumar Tiwari has received notice on behalf of the State.

The present writ petition is directed against the recovery certificate dated 11.12.2020. Further prayers in the writ petition are as under:-

i) Issue a writ, order or direction in the nature of Certiorari quashing the order dated 14.09.2020 (Annexure No.6) along with recovery notice dated 11.12.2020/08.01.2021 (Annexure No.8) to the writ petition.

ii) Issue a writ, order or direction in the nature of Mandamus directing the respondent to provide evidence relating to theft and decide the objection dated 30.09.2020/03.10.2020.

iii) Issue a writ, order or direction in the nature of Mandamus commanding the respondent no.2 not to take any coercive action in pursuance to order dated 14.09.2020 & 11.12.2020.

The contention of learned counsel for the petitioner is that the provisional assessment notice dated 21.08.2020 had been dispatched from the office of respondent no.2 on 10.09.2020 and was served on the petitioner on 16.09.2020. Without waiting for the time given to the petitioner to file his objection to the aforesaid notice, final assessment order dated 14.09.2020 had been passed, which had led to issuance of the recovery notice dated 11.12.2020. It is contended that on receipt of the provisional assessment notice, the petitioner had filed its objection on 03.10.2020 but there has been no consideration to the same on the part of respondent no. 2. The petitioner herein

seeks to challenge the factum of theft and the inspection report which is the basis of issuance of the provisional assessment notice.

Sri Vipul Dwivedi, learned counsel has put in appearance on behalf of respondent nos. 1 and 2. The written instructions supplied to him indicates that the final assessment order dated 14.09.2020 had been passed on the premise that the petitioner did not file any objection to the provisional assessment notice. There is no indication in the written instructions regarding the dispatch of provisional assessment notice dated 21.08.2020.

Be that as it may, noticing the provisions of Clause 8.1 (a) & (b) of Electricity Supply Code, 2005, this Court finds that in a case of theft of electricity, the provisional assessment notice along with the show cause notice has to be sent to the consumer giving him time to file reply. On objections filed by the consumer, the authorized officer is under obligation to decide the same and if personal hearing is sought by the consumer, it has also to be accorded to him. In the instant case, the procedure as prescribed in Clause 8.1 (a) & (b) of the Supply Code, 2005 seems to have not been followed by the respondents before issuance of the final assessment order dated 14.09.2020.

In view thereof, without entering into the merit of the case, the present writ petition is being **disposed of** with the direction as follows:

1. The petitioner herein is granted liberty to file a fresh objection within a period of two weeks from today along with a copy of this order, to the provisional assessment notice dated 21.08.2020. In case such an objection is filed, respondent no. 2 shall take an expeditious decision on the same within a further period of four weeks by passing a reasoned and speaking order dealing with all points of objections stated by the petitioner.
2. The recovery notice dated 11.12.2020 and the final assessment order dated 14.09.2020 shall be subject to the fresh decision to be taken by the respondents.

Order Date :- 25.3.2021

Madhurima